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March 5, 2026

COMMITTEE SUBSTITUTE
FOR
SENATE BILL NO. 1928

By: Murdock of the Senate

and

Moore of the House

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[ water and water rights - metering of wells -
allocation - requirements - measurement program -
certification - effective date ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.19, is amended to read as follows:

~~Section 1020.19. Upon request of a majority of the landowners residing within a basin or subbasin, the Board is authorized to require that water wells be metered and that such meters as the Board shall approve be utilized by the applicant and placed under seal, subject to reading by the agents of the Board at any time. The Board may also require that the applicant report the reading of such meters at reasonable intervals.~~

A. To encourage groundwater conservation, beginning January 1,
2027, the Oklahoma Water Resources Board shall provide a five-year

1 flex allocation of groundwater usage based off the previously
2 determined allocated annual use of the basin or subbasin. A five-
3 year flex allocation shall not require a new permit for existing
4 permit holders. A five-year flex allocation shall be available for:

5 1. Existing permit holders for groundwater use permits in
6 basins or subbasins, based upon the maximum annual yield
7 determination at the time of the original application;

8 2. New applicants for groundwater use permits in basins or
9 subbasins based upon the current maximum annual yield determination;
10 and

11 3. New and existing applicants and temporary permit holders for
12 groundwater use permits in basins or subbasins where the maximum
13 annual yield has yet to be determined.

14 B. An applicant for a five-year flex allocation shall be
15 required to:

16 1. Submit an annual usage report of the prior year's usage from
17 a Board-approved water measurement system; and

18 2. Pay the annual groundwater permit fee.

19 C. A five-year flex allocation shall allow the permit holder to
20 exceed the determined annual allocation in any year of the five-year
21 allocation; provided, that the applicant shall adhere to the
22 cumulative annually determined allocation of the basin or subbasin
23 over the five-year period. The permit holder shall not exceed the
24

1 permitted annual allocation by over one hundred fifty percent (150%)
2 in any of the five (5) years.

3 D. 1. For all permit holders not participating in the five-
4 year flex allocation pursuant to this section, a groundwater
5 irrigation district created pursuant to the Groundwater Irrigation
6 District Act or a conservation district participating in a
7 conservation cost-share program pursuant to Section 3-3-101 et seq.
8 of Title 27A of the Oklahoma Statutes shall develop a voluntary
9 groundwater use measurement program that provides Board-approved
10 measuring systems to members, on a loan or cost-share basis, for use
11 in verifying the volume of water pumped from wells and irrigation
12 systems to ensure system efficiency and proper accounting of water
13 use.

14 2. The groundwater irrigation district or conservation district
15 shall issue an annual certification that the permit holder has
16 participated in the groundwater use measurement program pursuant to
17 paragraph 1 of this subsection. The certification shall be
18 submitted with the permit holder's annual water use report.

19 E. Nothing in this section shall apply to domestic wells.

20 SECTION 2. This act shall become effective November 1, 2026.

21 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
22 March 5, 2026 - DO PASS AS AMENDED BY CS
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